
Software Development and Services Agreement

Production Quality Management System

Service Provider: Crave & Cook, Inc.

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Client: NPIC

Effective Date: _____ Agreement No.: _____

This **Software Development and Services Agreement** (the "Agreement") is entered into as of the date last signed below (the "Effective Date") by and between:

Crave & Cook, Inc., a corporation organized under the laws of the State of Texas, with its principal place of business at 111 Town Pl, Apt 1260, Fairview, TX 76069 (hereinafter "**Service Provider**"); and

NPIC, a corporation organized under the laws of the State of Texas, with its principal place of business at 3601 E Plano Pkwy #150, Plano, TX 75074 (hereinafter "**Client**").

WHEREAS, Service Provider has developed a proprietary production quality management system; and WHEREAS, Client desires to license and deploy such system for its internal production operations; NOW, THEREFORE, in consideration of the mutual covenants herein, the parties agree as follows:

1. DEFINITIONS

1.1 "Software" means the QC Real-Time Management System developed by Service Provider, comprising the modules specified in Exhibit A, together with all configurations, updates, and documentation delivered under this Agreement.

1.2 "Hardware" means the physical items described in Section 2.2 delivered by Service Provider.

1.3 "Deliverables" means the Software, Hardware, and Services collectively.

1.4 "Go-Live Date" means the date Client signs the Acceptance Certificate pursuant to Section 3.5.

1.5 "Fee-Free Period" means the five (5)-year period beginning on the Go-Live Date during which the monthly license fee is waived.

1.6 "Initial Support Period" means the ninety (90)-day period immediately following the Go-Live Date.

1.7 "Domain" means the domain name npicmanage.com registered and maintained by Service Provider.

2. SCOPE OF DELIVERABLES

2.1 Software. Service Provider shall configure and deploy the QC Real-Time Management System for Client's production facility. The Software comprises the following functional modules (full specifications in Exhibit A):

- **Module A** — Production Batch & Cart Management: work order creation, cart numbering, label printing and QR code binding
- **Module B** — Drying Room Real-Time Monitoring: check-in/check-out via barcode scanner, drying timer, expiry alerts
- **Module C** — Sampling & Inspection Workflow: configurable sampling rules, water activity result entry, real-time Pass/Fail judgment
- **Module D** — Non-Conforming Product Disposition: disposition workflow (re-test / re-dry / ambient dry / scrap), full audit trail
- **Module E** — Management Dashboard: real-time production overview, one-click batch release
- **Module F** — Complete Batch Traceability: end-to-end traceability from production batch to dispatch
- **Module G** — Product & Inspection Standard Management: per-product inspection templates and pass/fail range configuration
- **Module H** — Packaging Release Queue: Wendy's real-time view of QC-released carts, multi-select batch dispatch

2.2 Hardware. Service Provider shall deliver the following hardware with the project:

Item	Quantity	Purpose
Barcode Scanner	2	Drying room cart check-in / check-out
Date Stamp	3	Check-in / check-out date marking
Ink Pad	2	For use with date stamps

Title and risk of loss for Hardware pass to Client upon delivery. Hardware is covered solely by the applicable manufacturer's warranty; Service Provider provides no separate hardware warranty.

2.3 Services. Service Provider shall provide:

- System configuration and data initialization (product catalog, inspection templates, user account setup)
- On-site installation and device setup at Client's facility
- Role-based user training per the training plan in Exhibit A
- Testing and acceptance support (parallel-run period and issue resolution)
- IT support as specified in Section 6

2.4 Domain. Service Provider shall register and maintain the domain name **npicmanage.com** for Client's exclusive use throughout the term of this Agreement.

3. IMPLEMENTATION AND ACCEPTANCE

3.1 Implementation Phases. Service Provider shall implement the Software in the following phases:

Phase	Description	Responsible
Phase 1	Data Entry & System Initialization: product catalog, inspection templates, user accounts	Service Provider + Client QC Manager / IT
Phase 2	On-Site Installation & Device Setup: scanner and tablet configuration at each workstation	Service Provider + Client staff
Phase 3	Parallel Run: 1-week dual-track operation with paper records, issue resolution, client acceptance sign-off	Service Provider + All stakeholders
Phase 4	Role-Based Training & Go-Live: per-role training, operation manuals, full cutover to digital system	Service Provider

3.2 Estimated Timeline. The estimated implementation period from contract signing to Go-Live Date is approximately four (4) weeks, subject to Section 3.4.

3.3 Acceptance Criteria. Acceptance requires satisfaction of all of the following:

- Both test work orders complete the full workflow cycle (creation → drying → inspection → dispatch) with accurate data and zero recording errors

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- All user accounts are configured with correct role-based permissions; each role accesses only its authorized functions
 - All system notifications (sampling alerts, expiry alerts, release notifications) are delivered to the correct personnel
 - Barcode scanner check-in/check-out, batch checkout, and batch dispatch functions operate correctly
 - System data is consistent with actual physical operations; no missing records

3.4 Client Cooperation. Client shall designate a primary project contact and ensure timely availability of relevant personnel for system setup, testing, and training. Delays caused by Client's failure to cooperate shall extend the implementation timeline accordingly and shall not constitute a breach by Service Provider.

3.5 Acceptance Process. Upon completion of the parallel-run phase, Service Provider shall submit a written acceptance test report. Client shall within five (5) business days either (a) sign the Acceptance Certificate, constituting Acceptance, or (b) deliver written notice of specific, documented deficiencies. Service Provider shall correct documented deficiencies and resubmit. If Client fails to respond within five (5) business days of resubmission, Acceptance shall be deemed granted.

4. SOFTWARE OWNERSHIP AND LICENSE

4.1 Ownership. Client acknowledges and agrees that the Software — including all source code, object code, documentation, interfaces, and related materials — is and shall remain the sole and exclusive intellectual property of Service Provider. This Agreement constitutes a license, not a sale or transfer of the Software or any intellectual property rights therein.

4.2 License Grant. Subject to the terms of this Agreement and conditioned upon Client's timely payment of all amounts due, Service Provider grants Client a limited, non-exclusive, non-transferable, non-sublicensable license to access and use the Software solely for Client's internal business operations.

4.3 Fee-Free Period. Service Provider waives the monthly license fee for a period of five (5) years beginning on the Go-Live Date. No license fee shall be charged to Client during the Fee-Free Period.

4.4 Monthly License Fee. Beginning on the first day of the month immediately following the fifth (5th) anniversary of the Go–Live Date, Client shall pay a monthly license fee of **USD \$300.00** per month, due on the first business day of each month.

4.5 Suspension for Non–Payment. If Client fails to pay any license fee within thirty (30) days of its due date, Service Provider may, upon written notice, suspend Client's access to the Software until all outstanding amounts are paid in full. Access shall be restored within two (2) business days of receipt of full payment.

4.6 Data Ownership. All data entered into the Software by Client remains the sole property of Client. Service Provider shall not use, disclose, or exploit Client's data for any purpose other than providing services under this Agreement. Upon termination, Service Provider shall deliver a complete export of Client's data in a standard, machine–readable format within thirty (30) days.

4.7 Restrictions. Client shall not: (a) copy, modify, or create derivative works of the Software; (b) reverse engineer, decompile, or disassemble the Software; (c) rent, lease, sell, or sublicense the Software to any third party; (d) remove or alter any proprietary notices; or (e) use the Software in violation of applicable law.

5. PAYMENT TERMS

5.1 Implementation Fee. Client shall pay Service Provider a total implementation fee of **USD \$27,700.00**, payable in three milestone installments:

Installment	Payment Milestone	Amount (USD)	%
Installment 1	Contract signing — prior to system configuration	\$8,310	30%
Installment 2	Parallel run complete; client signs Acceptance Certificate (Section 3.5)	\$13,850	50%
Installment 3	Role–based training complete; system officially go–live	\$5,540	20%
Total		\$27,700	100%

5.2 Payment Terms. Invoices are due within fifteen (15) days of issuance. Service Provider is not obligated to commence the next implementation phase until the corresponding milestone payment is received.

5.3 Late Payment. Amounts unpaid fifteen (15) days after the invoice date accrue interest at 1.5% per month (or the maximum rate permitted by law, whichever is lower), from the invoice date until paid in full.

5.4 Taxes. All fees exclude applicable taxes. Client is responsible for all sales, use, VAT, or similar taxes arising from this Agreement, other than taxes on Service Provider's net income.

6. IT SUPPORT

6.1 Initial Support Period. For ninety (90) days following the Go-Live Date, Service Provider shall provide 24/7 IT support at no additional charge, including:

- Bug fixes and software error resolution
- System performance monitoring
- User account and permission management assistance
- Guidance on system usage and best practices

6.2 Ongoing Support. After the Initial Support Period, IT support is provided on a time-and-materials basis at **USD \$200.00 per hour**, billed in 30-minute increments (rounded up). For engagements expected to exceed two (2) hours, Service Provider shall provide a written estimate in advance.

6.3 Response Time. Service Provider shall acknowledge all support requests and provide an estimated resolution time within **eight (8) hours** of receipt. For critical issues that render the Software completely inoperable, Service Provider shall use commercially reasonable efforts to deliver an initial workaround within twenty-four (24) hours.

6.4 Exclusions. Support obligations do not cover: (a) issues caused by Client's unauthorized modifications; (b) third-party software or hardware failures; (c) misuse or deviation from documented operating procedures; or (d) requests for new features outside the original Deliverables scope.

7. DOMAIN NAME

7.1 Service Provider shall register and maintain **npicmanage.com** for Client's exclusive use for the duration of this Agreement. Domain registration and renewal costs are included in the implementation fee for the first five (5) years; thereafter, renewal costs are passed through to Client at cost.

7.2 The domain shall be registered in Service Provider's name. Upon termination of this Agreement, provided all outstanding amounts have been paid in full, Service Provider shall transfer the domain to Client within thirty (30) days of Client's written request.

8. WARRANTIES

8.1 Service Provider warrants that the Software will perform materially in accordance with Exhibit A for ninety (90) days following the Go-Live Date. Service Provider's sole obligation under this warranty is to use commercially reasonable efforts to correct material defects reported during the warranty period at no charge.

8.2 EXCEPT AS SET FORTH IN SECTION 8.1, ALL DELIVERABLES ARE PROVIDED "AS IS." SERVICE PROVIDER DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

9. LIMITATION OF LIABILITY

9.1 IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR DAMAGES FOR LOSS OF PROFITS, REVENUE, OR BUSINESS INTERRUPTION, REGARDLESS OF THE THEORY OF LIABILITY AND EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

9.2 SERVICE PROVIDER'S TOTAL AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID BY CLIENT TO SERVICE PROVIDER IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

10. CONFIDENTIALITY

10.1 Each party shall hold the other's non-public business and technical information ("Confidential Information") in strict confidence, use it solely for purposes of this Agreement, and not disclose it to third parties without prior written consent.

10.2 Obligations in Section 10.1 do not apply to information that: (a) is publicly available through no breach hereof; (b) was already known by the recipient; (c) is independently developed without reference to the other's Confidential Information; or (d) is required to be disclosed by law or court order (with prompt written notice to the disclosing party).

10.3 Confidentiality obligations survive termination for three (3) years.

11. TERM AND TERMINATION

11.1 Term. This Agreement commences on the Effective Date and continues indefinitely until terminated pursuant to this Section.

11.2 Termination for Breach. Either party may terminate upon thirty (30) days' written notice if the other materially breaches this Agreement and fails to cure within thirty (30) days of notice.

11.3 Termination for Non-Payment. Service Provider may terminate this Agreement upon fifteen (15) days' written notice if Client fails to pay any amount within sixty (60) days of its due date.

11.4 Effect of Termination. Upon termination: (a) the license terminates immediately; (b) Client shall cease all use of the Software; (c) Service Provider shall deliver a data export per Section 4.6; and (d) all accrued, unpaid amounts become immediately due and payable.

11.5 Survival. Sections 4.1, 4.6, 4.7, 7.2, 9, 10, and 12 survive termination.

12. GENERAL PROVISIONS

12.1 Governing Law. This Agreement is governed by the laws of the State of Texas, without regard to conflict-of-law principles.

12.2 Dispute Resolution. Disputes shall first be submitted to good-faith negotiation between senior representatives. If unresolved within thirty (30) days, disputes shall be resolved by binding arbitration under the rules of the American Arbitration Association in [City, State].

12.3 Force Majeure. Neither party is liable for delays caused by circumstances beyond its reasonable control (acts of God, government actions, internet outages), provided prompt written notice is given.

12.4 Entire Agreement. This Agreement and its Exhibits constitute the complete agreement between the parties and supersede all prior proposals, negotiations, and representations.

12.5 Amendments. Amendments require a written instrument signed by authorized representatives of both parties.

12.6 Assignment. Client may not assign this Agreement without Service Provider's prior written consent. Service Provider may assign in connection with a merger, acquisition, or sale of substantially all assets.

12.7 Severability. Invalid or unenforceable provisions shall be modified to the minimum extent necessary to make them enforceable; remaining provisions continue in full force.

12.8 Notices. All notices shall be in writing, delivered by email (with read receipt) or overnight courier to the addresses provided by each party.

12.9 Counterparts; Electronic Signatures. This Agreement may be executed in counterparts, and electronic signatures shall be deemed valid and binding.

EXHIBIT A — SOFTWARE SPECIFICATIONS & ACCEPTANCE CRITERIA

Functional Modules (as detailed in Section 2.1): Modules A through H covering production batch management, drying room monitoring, sampling and inspection, disposition workflow, management dashboard, batch traceability, inspection standard management, and packaging release queue.

Training Plan

Role	Content	Duration
Printing Staff	Work order creation, label printing, cart numbering	1 hour
Drying Room Operator	Scanner check-in/out, room assignment, batch checkout, expiry alerts	2 hours
Testing Lab Leader	Sampling notification, water activity entry, Pass/Fail workflow	2 hours
Packaging Dept Leader	Released cart list, multi-select, batch dispatch	1 hour

Acceptance Criteria — as set forth in Section 3.3 of this Agreement.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

CRAVE & COOK, INC.
(Service Provider)

[NPIC FULL LEGAL NAME]
(Client)

Signature

Signature

Printed Name

Printed Name

Title

Title

Date

Date